Sexual Offenc

Forensic Medicine | 3rd Year MBBS

Hi Sammy!
Sexual offences = very important medicolegal topic. Handle with care!

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Rape — Legal Definition + IPC 375

IPC 375 definition is
asked VERBATIM in exams!
Know every element!

Rape — IPC Section 375 (Key Provisions)

"A man is said to commit rape who has sexual intercourse with a woman under circumstances falling under any of the following descriptions..." — IPC 375

Circumstances constituting rape:

1. Against her will
2. Without her consent
3. Consent obtained by putting her in fear of death or hurt
4. Consent by impersonation of husband
5. Consent when of unsound mind or intoxicated
6. With or without consent when she is under 18 years (statutory rape)

BNS Section 63 — New Definition (2024)

- Expanded definition: includes oral, anal penetration, and object insertion
- Age of consent remains 18 years
- Marital rape exception retained (wife >18 years)
- Punishment: Sec 64 BNS — min 10 years RI, may extend to life/death

Punishment for Rape (IPC 376 / BNS 64-69)

Type of Rape	IPC Section	Punishment
Rape (general)	376(1)	Min 10yr RI to life
Gang rape	376(D)	Min 20yr RI to life
Rape of minor (<12yr)	376(AB)	Min 20yr RI to death
Rape of minor (<16yr)	376(3)	Min 20yr RI to life
Repeat offender	376(E)	Life imprisonment or death
Custodial rape	376(2)	Min 10yr RI to life

Examination protocol is asked as LAQ and in practical exams!

Examination of Rape Victim (Female)

Step	Details
Consent	Written informed consent; if minor — guardian's consent
Female doctor	Female doctor preferred; female attendant MUST be present
General exam	Age, build, mental state, signs of violence/struggle
Clothing	Examine for tears, stains (blood, semen); preserve as evidence
Injuries	Bruises, nail marks, bite marks on body (breasts, thighs, neck)
Genital exam	Vulva, hymen, vagina — tears, bleeding, swelling
Samples	Vaginal swabs (high/low), pubic hair combing, nail clippings
Lab tests	Acid phosphatase, PSA, spermatozoa, DNA profiling

Examination of Accused (Male)

Step	Details
Consent	Can examine without consent (CrPC Sec 53)
General exam	Build, potency, signs of struggle (scratch marks)
Genital exam	Penis — smegma (absence suggests recent wash), frenulum tear
Samples	Penile swabs, pubic hair, blood for DNA
Clothing	Stains of semen, blood, vaginal epithelial cells
Potency	Ability to perform sexual intercourse (not fertility!)

★ **Key Medicolegal Points:**

- **Absence of injuries does NOT rule out rape**
- **Intact hymen does NOT rule out rape (elastic/fimbriated hymen)**
- **Absence of spermatozoa does NOT rule out rape (azoospermia, condom use)**

POCSO Act + Florence test + hymen types = viva favorites!

POCSO Act 2012 (Amended 2019)

Full form:	Protection of Children from Sexual Offences Act
Applies to:	All children below 18 years (both boys and girls)
Gender neutral:	Protects BOTH male and female children
Special courts:	Designated courts for speedy trial
Mandatory reporting:	Any person who knows must report (failure = offence)

Types of Hymen

Type	Description
Annular	Most common type; ring-shaped opening in center
Crescentic	Semilunar; opening near anterior or posterior wall
Fimbriated	Irregular fringe-like edges; may be mistaken for torn hymen
Septate	Band of tissue divides opening into two
Cribriform	Multiple small openings (sieve-like)
Imperforate	No opening at all — needs surgical correction (hematocolpos)

Laboratory Tests for Semen Detection

Test	Detects	Significance
Florence test	Choline (iodine crystals)	Preliminary screening, not confirmatory
Barberio test	Spermine (picric acid)	Screening test for semen
Acid phosphatase	Prostatic acid phosphatase	High levels = semen (even without sperm)
PSA (p30)	Prostate specific antigen	Confirmatory for semen, even in azoospermia
Microscopy	Spermatozoa	Gold standard — direct visualization of sperm
DNA profiling	Genetic material	Identity of accused — most definitive

★ Remember!
Florence = First (screening) | PSA = Proof of Semen (Absolute) | DNA = Definitive ID

Exam Strategy + High Yield

Sexual offences = very important medicolegal! You've GOT this Sammy!

Most Repeated LAQs (10–12 marks)

- 1. Define rape (IPC 375). Describe examination of a rape victim
- 2. Discuss medicolegal aspects of rape — examination, evidence, reporting
- 3. Describe examination of the accused in a case of alleged rape
- 4. Write about POCSO Act — provisions, special courts, penalties
- 5. Discuss laboratory methods for detection of semen and identification

Most Repeated SAQs (5–6 marks)

- 1. Types of hymen with diagrams
- 2. Florence test and Barberio test
- 3. Examination of accused in rape case
- 4. Statutory rape — definition and age
- 5. Acid phosphatase test for semen
- 6. POCSO Act — key features (brief)

One-Liner Associations (MCQ/Viva Gold)

Question	Answer
Section for rape definition	IPC 375 / BNS 63
Age of consent in India	18 years
POCSO Act year	2012 (amended 2019)
Most common hymen type	Annular
Screening test for semen	Florence test (choline crystals)
Confirmatory test for semen	PSA (p30) / Microscopy
Acid phosphatase source	Prostate gland
Intact hymen rules out rape?	NO (elastic/fimbriated hymen)
Absence of sperm rules out rape?	NO (azoospermia, condom use)
Examination of accused — section	CrPC 53 (without consent)

♥ **Your medical expertise will help survivors find justice, Sammy!**
Always examine with empathy, sensitivity, and scientific rigor.